

Mutual Non-Disclosure

Bestly In-House Cloud — Pre-Discovery Confidentiality Agreement

DRAFT — replace with finalized contract terms after legal review before any customer signs.

This Mutual Non-Disclosure Agreement ("NDA") is between Bestly LLC ("Bestly") and {{COMPANY_NAME}} ("Customer"), each a "Party", effective on the date both parties sign below.

1. Confidential information

"Confidential Information" means any non-public information disclosed by one Party to the other in connection with evaluating a potential Bestly In-House Cloud deployment, including pricing terms, technical architecture, customer infrastructure details, employee rosters, and business strategy. Information that is publicly available, independently developed, or rightfully obtained from a third party is not Confidential Information.

2. Use

Each Party may use the other's Confidential Information solely to evaluate, negotiate, and execute a Bestly In-House Cloud deployment. Neither Party will use the other's Confidential Information for any other purpose without prior written consent.

3. Protection

Each Party will protect the other's Confidential Information using at least the same degree of care it uses to protect its own confidential information of like importance, and in any case no less than reasonable care.

4. Exceptions

Nothing in this NDA prohibits a Party from disclosing Confidential Information to the extent required by law or court order, provided the disclosing Party gives prompt notice to the other Party where legally permitted.

5. Term

This NDA remains in effect for two (2) years from the effective date, or until superseded by a fully-executed Statement of Work between the Parties, whichever is sooner. Confidentiality obligations survive expiration for an additional three (3) years.

6. No license

Disclosure of Confidential Information does not grant any license, rights, or interest in the Confidential Information itself or any related intellectual property.

7. Governing law

This NDA is governed by the laws of the State of California.

8. Entire agreement

This NDA is the entire agreement between the Parties on its subject matter and supersedes all prior or contemporaneous oral or written communications regarding confidentiality.

Bestly LLC

By: _____

Name: Jared Best

Title: Founder

Date: _____

{{COMPANY_NAME}}

By: _____

Name: {{SIGNER_NAME}}

Title: {{SIGNER_TITLE}}

Date: _____